

An Act

ENROLLED HOUSE
BILL NO. 3522

By: Marti of the House

and

Coleman of the Senate

An Act relating to alcoholic beverages; amending 37A O.S. 2021, Section 1-107, which relates to the powers and duties of the Oklahoma Alcoholic Beverage Laws Enforcement Commission; requiring an annual report that contains certain information to be made available to certain individuals; requiring report to be made available online; and providing an effective date.

SUBJECT: Alcoholic beverages

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 1-107, is amended to read as follows:

Section 1-107. A. The ABLE Commission shall have the following powers and duties:

1. To supervise, inspect and regulate every phase of the business of manufacturing, importing, exporting, transporting, storing, selling, distributing and possessing for the purpose of sale, all alcoholic beverages which shall be necessary and proper to carry out the purposes of the Oklahoma Alcoholic Beverage Control Act;

2. To promulgate rules, in the manner herein provided, to carry out the purposes of the Oklahoma Alcoholic Beverage Control Act;

3. To have the sole authority to issue any license provided for in the Oklahoma Alcoholic Beverage Control Act and except as

provided in Sections ~~401~~ 4-104 and ~~402~~ 4-105 of this ~~act~~ title with respect to cities, towns and counties, and except as may be provided under Title 68 of the Oklahoma Statutes with respect to the Oklahoma Tax Commission, no other agency, instrumentality or political subdivision of this state shall be authorized to issue any license or permit allowing any licensee to engage in any activity covered by the Oklahoma Alcoholic Beverage Control Act anywhere within the State of Oklahoma;

4. To refuse to issue any license provided for in the Oklahoma Alcoholic Beverage Control Act for cause provided for in the Oklahoma Alcoholic Beverage Control Act;

5. To revoke or suspend, for cause after hearing, any license issued under the authority of the Oklahoma Alcoholic Beverage Control Act;

6. To prescribe the forms of all reports which it deems necessary in administering the Oklahoma Alcoholic Beverage Control Act;

7. To fix standards not in conflict with those prescribed by any law of this state or of the United States, to secure the use of proper ingredients and methods of manufacture and dispensing of alcoholic beverages;

8. To make seizures of alcoholic beverages manufactured, sold, possessed, imported or transported in violation of the Oklahoma Alcoholic Beverage Control Act, and apply for the confiscation thereof whenever required by the Oklahoma Alcoholic Beverage Control Act, and cooperate in the prosecution of offenders before any court of competent jurisdiction;

9. To submit to the Governor and members of the State Legislature annual or semiannual reports upon request of the Governor;

10. To prepare an annual report by January 31 of each year listing the number of licenses revoked or suspended and the basis for the action. The report shall also include the number of tickets written, the total amount of the tickets and the total amount penalized. The report shall be delivered to the Governor, Speaker of the Oklahoma House of Representatives and President Pro Tempore of the Oklahoma State Senate, and made public on the ABLE website;

11. To inspect or cause to be inspected any premises where alcoholic beverages are manufactured, stored, distributed, sold, dispensed or served;

~~11.~~ 12. In the conduct of any hearing authorized to be held by the ABLE Commission:

- a. to examine or cause to be examined, under oath, any person,
- b. to examine or cause to be examined books and records of any licensee,
- c. to hear testimony and take proof material for the ABLE Commission's information and the discharge of its duties hereunder,
- d. to administer or cause to be administered oaths, and
- e. to issue subpoenas for the attendance of witnesses and the production of books or records which shall be effective in any part of the state. Any district court or any judge thereof, either in term or vacation, may by order duly entered require the attendance of witnesses and the production of relevant books or records subpoenaed by the ABLE Commission, and the court or judge may compel obedience to the order by proceedings for contempt;

~~12.~~ 13. To prescribe the kind and size of retail containers of alcoholic beverages which may be purchased, possessed and sold by a licensee;

~~13.~~ 14. To prescribe by rule, in addition to those herein required, the kinds of records to be kept and reports to be rendered by licensees, and the information to be shown therein; provided, that the period for which all such records and reports be retained shall not be less than five (5) years;

~~14.~~ 15. To gather, compile and print such statistical data as may in the opinion of the ABLE Commission be needed or useful, and prescribe charges or fees to be collected from any person or company to whom such data shall be provided. No reports shall contain sales information by name or license number;

~~15.~~ 16. To educate persons employed by licensees to sell or serve alcoholic beverages as to the provisions of Article XXVIII A of the Oklahoma Constitution and the Oklahoma Alcoholic Beverage Control Act, with emphasis on recognizing and preventing intoxication and particular emphasis on those provisions prohibiting the selling or serving of alcoholic beverages to minors. The ABLE Commission may contract with one or more entities, including but not limited to the Oklahoma Department of Mental Health and Substance Abuse Services, to perform the duties specified in this paragraph;

~~16.~~ 17. To purchase motor vehicles necessary for use in its operations. Such motor vehicles shall not be required to have any type of identifying marking thereon;

~~17.~~ 18. To purchase insurance on the motor vehicles owned and operated by the ABLE Commission in accordance with statutory provisions, subject to the approval of the Risk Management Administrator as provided for in Section 85.58A of Title 74 of the Oklahoma Statutes;

~~18.~~ 19. To approve or reject any official bond required to be filed with the ABLE Commission; and

~~19.~~ 20. To exercise all other powers and duties conferred by the Oklahoma Alcoholic Beverage Control Act, and all powers incidental, convenient or necessary to enable it to administer or carry out any of the provisions of the Oklahoma Alcoholic Beverage Control Act.

B. The ABLE Commission shall promulgate rules, pursuant to the Administrative Procedures Act, to carry out the purposes of the Oklahoma Alcoholic Beverage Control Act.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 2nd day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 15th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____